

**BEFORE THE STATE BOARD OF LICENSED PROFESSIONAL COUNSELOR
EXAMINERS**

STATE OF COLORADO

Case Nos. 2017-7092 and 2019-7700

STIPULATION AND FINAL AGENCY ORDER

**IN THE MATTER OF DISCIPLINARY PROCEEDINGS REGARDING THE
LICENSE TO PRACTICE PROFESSIONAL COUNSELING IN THE STATE OF
COLORADO OF MICHELLE THERESA SARILLO, LICENSE NO. LPC 14019,**

Respondent.

IT IS HEREBY STIPULATED by and between the State Board of Licensed Professional Counselor Examiners ("the Board") and Michelle Theresa Sarillo ("Respondent") as follows:

- 1. Respondent is a licensed professional counselor ("LPC") within the State of Colorado, license number LPC 14019.**
- 2. The Board has jurisdiction over the person of Respondent and the subject matter of this Stipulation and Final Agency Order ("Order") pursuant to the Mental Health Practice Act, § 12-245-101 *et seq.*, C.R.S. ("MHPA").**
- 3. Respondent obtained her license to practice as an LPC in the State of Colorado on August 26, 2017, and has been so licensed at all times relevant herein.**
- 4. It is the intent of the parties and the purpose of this Order to provide for a settlement of all matters arising out of case numbers 2017-7092 and 2019-7700 without the necessity of holding a formal hearing. This Order is a full and final resolution of case numbers 2017-7092 and 2019-7700. This Order does not resolve any other cases, complaints, or matters, known or unknown to the Board or Respondent, as of the effective date of this Order.**
- 5. Respondent admits the following:**
 - a. On April 16, 2018, Respondent entered into a Stipulation and Final Agency Order in Case No. 2017-7092 ("2018 Stipulation").**

Therein, Respondent admitted to violations of §§ 12-245-216(1)¹ and 12-245-224(1)(g)(I), (p), and (u), C.R.S.².

- b. As a result of these admitted violations, Respondent agreed to disciplinary terms including, but not limited to, the following:
 - i. Within twelve (12) months of the effective date of the 2018 Stipulation, or by April 16, 2019, Respondent was required to complete 20 hours of continuing education in the areas of recordkeeping, ethics, and consent for treatment. Respondent was required to obtain approval from the Board prior to enrollment in said classes for the same to satisfy the terms of the 2018 Stipulation.
- c. Respondent failed to provide the Board with any documentation evidencing completion of the continuing education hours required by the 2018 Stipulation.
- d. On or about September 26, 2019, Respondent pled guilty to one (1) count of child abuse causing serious bodily injury, a class 4 felony, and one (1) count of attempted sexual assault of a child, a class 5 felony, in Adams County Case No. 2018CR2800.
- e. Respondent did not report these felony convictions to the Board as required by § 12-245-226(8), C.R.S.
- f. The Board became aware of Respondent's felony convictions on November 1, 2019, and initiated a complaint ("Complaint") against her for violating the MHPA.
- g. On November 5, 2019, Board staff sent Respondent a copy of the Complaint and requested a response thereto within ten (10) days, or by November 15, 2019.
- h. Respondent did not respond to the Complaint within the proscribed period of time or at any time thereafter.
- i. On November 27, 2019, the Board summarily suspended Respondent pursuant to §§ 24-4-104(4)(a) and 24-4-105(12), C.R.S., as it found objective and reasonable grounds to believe and found that Respondent was not safe to practice professional

¹ Previously § 12-43-214(1), C.R.S., prior to recodification of Title 12, effective October 1, 2019.

² Previously § 12-43-222(1)(g)(I), (p), and (u), C.R.S., prior to recodification of Title 12, effective October 1, 2019.

counseling with reasonable skill and safety to patients, and the public health, safety, and welfare required emergency action.

6. By virtue of the facts admitted in paragraph 5 above, Respondent admits, and the Board finds, that Respondent violated §§ § 12-245-224(1)(a), (b), and (x), C.R.S. Respondent is subject to the following disciplinary sanctions that the Board believes is necessary to protect the public health, safety, and welfare.

RELINQUISHMENT

7. Respondent hereby relinquishes her license to practice as an LPC in the State of Colorado for a period of three (3) years, commencing from the effective date of this Order. Such relinquishment shall have the same force and effect as a revocation ordered by the Board. Respondent agrees not to reapply for licensure as an LPC in the State of Colorado until after the three (3) year relinquishment period set forth herein has lapsed.

8. Respondent understands and agrees that should she reapply for licensure as an LPC in the State of Colorado after the three (3) year relinquishment period set forth herein has lapsed, her application will go before the Board and it is within the Board's authority to determine whether said application should be granted, denied, or otherwise.

9. By entering into this Order, the Board in no way guarantees that Respondent will be granted a license to practice as an LPC in the State of Colorado should she decide to reapply for the same after the three (3) year relinquishment period.

10. Following relinquishment of her license, Respondent shall not perform any act requiring a license to practice as an LPC in the State of Colorado unless and until she submits and the Board accepts an application for licensure as an LPC in the State of Colorado.

TERMS AND CONDITIONS

11. Respondent is fully aware of and understands the right to receive a formal notice of hearing and charges and to have a formal disciplinary hearing, pursuant to § 12-245-226, C.R.S., and hereby waives those rights. Further, Respondent acknowledges this waiver constitutes a waiver of all rights to appeal in this matter.

12. This Order is entered into by Respondent voluntarily and without coercion, after an opportunity to consult with counsel and with full understanding of the legal consequences of this Order and the right to a formal hearing on all matters herein.

13. This Order shall become an Order of the Board when it is accepted and signed by the Program Director or authorized Board representative.

14. The Order entered pursuant to this Stipulation and Final Agency Order shall constitute a Board Order for purposes of § 12-245-224, C.R.S., and shall have the same force and effect as an order entered after a formal disciplinary hearing pursuant to § 12-245-226, C.R.S.

15. This Order constitutes the entire agreement between Respondent and the Board. There are no other promises expressed or implied. In the event that any provision of this Order is deemed unenforceable by a court of competent jurisdiction, such provision shall be severed, and the remainder of this Order shall be given full force and effect.

16. This Order shall be admissible as evidence at any hearing held before the Board.

17. This Order shall be a public record in the custody of the Board.

EFFECTIVE DATE

18. This Order will be effective as a Final Agency Order of the Board upon (a) mailing a fully-executed copy by first class mail to Respondent at Respondent's address of record with the Board, or (b) service by electronic means on Respondent at Respondent's electronic address of record with the Board. Respondent hereby consents to service by electronic means if Respondent has an electronic address on file with the Board.

AGREED TO AND ACCEPTED BY:

RESPONDENT



Michelle Theresa Sarillo
License No. LPC 14019

Dated: 1/6/20

**COLORADO BOARD OF LICENSED
PROFESSIONAL COUNSELOR
EXAMINERS**



Samuel Delp
Senior Program Director

Dated: January 7, 2020